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FEDERAL GOVERNMENT GAZETTE

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ENERGY EFFICIENCY AND CONSERVATION REGULATIONS 2024

ENERGY EFFICIENCY AND CONSERVATION ACT 2024

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ENERGY EFFICIENCY AND CONSERVATION ACT 2024

ENERGY EFFICIENCY AND CONSERVATION REGULATIONS 2024

IN exercise of the powers conferred by section 69 of the Energy Efficiency and Conservation Act 2024 [*Act 861*], the Minister makes the following regulations:

PART I

PRELIMINARY

Citation and commencement

1. (1) These regulations may be cited as the **Energy Efficiency and Conservation Regulations 2024**.

(2) These Regulations come into operation on 1 January 2025.

Interpretation

2. In these Regulations, unless the context otherwise requires—

“gigajoule” means the unit of measurement of energy consumption where a unit of gigajoule is equal to one thousand million joules;

“registered energy manager” means a registered energy manager who fulfils the requirements under regulation 14;

“related corporation” has the same meaning assigned to it in the Companies Act 2016 [*Act 777*].

Energy consumption threshold for energy consumer

3. For the purposes of paragraph 3(1)(a) of the Act, the energy consumption threshold of an energy consumer are twenty one thousand six hundred gigajoule (21,600 gigajoule).

PART II
DUTIES OF ENERGY CONSUMER

Chapter 1 – Registered energy manager

Registered energy manager among employee

4. (1) Subject to regulation 5, an energy consumer shall appoint a registered energy manager who fulfils the requirements of regulation 14, among his employee.

(2) The appointment of a registered energy manager under subregulation (1) shall be made within three months from the date of the written notice under subsection 3(3) of the Act issued by the Commission to him.

(3) The energy consumer shall notify the Commission by electronic means on the appointment of the registered energy manager made under subregulation (1).

(4) A registered energy manager appointed under subregulation (1) by an energy consumer, may carry out his functions and duties to not exceeding seven (7) other energy consumer which are related corporation with the energy consumer who appointed him.

Appointment of registered energy manager

5. The energy consumer shall appoint —

(a) a registered energy manager who fulfils the requirements of regulation 14 where the energy consumption of the energy consumer within any period of twelve consecutive months is equal to or exceeds 21,600 gigajoule and not more than 50,000 gigajoule; or

(b) a registered energy manager who fulfils the requirements of subregulation 14(2) or (3) where the energy consumption of the energy consumer within any period of twelve consecutive months exceeds 50,000 gigajoule.

Registered energy manager not among employee

6. (1) Notwithstanding subregulation 4(1), an energy consumer may appoint a registered energy manager who fulfils the requirements of subregulation 14(2) or (3) who is not among his employee or the employee of related corporation of such energy consumer, as a registered energy manager, for a period not exceeding three years from the date of the written notice under subsection 3(3) of the Act issued by the Commission to that energy consumer.

(2) An energy consumer shall notify the Commission by electronic means on the appointment of the registered energy manager made under subregulation (1).

(3) A registered energy manager appointed under subregulation (1) by an energy consumer may carry out his functions and duties to not exceeding seven (7) other energy consumer.

(4) Immediately after the expiry of the appointment under subregulation (1), the energy consumer shall appoint a registered energy manager among his employees in accordance with regulation 4.

Vacation of office of registered energy manager

7. (1) If an appointed registered energy manager vacates his office for any reason, the energy consumer shall serve a notice in any form as may be determined by the Commission within fourteen days from the date that the office being vacated.

(2) The energy consumer shall within three months from the date the registered energy manager vacated his office, appoint a registered energy manager among his employees to fill the vacated office in accordance with regulation 4.

(3) Where the energy consumer is unable to appoint a registered energy manager among his employees in accordance with subregulation (2), the energy consumer may, with written approval of the Commission, appoint a registered energy manager who fulfils the requirements of subregulation 14(2) or (3) who is not among his

employee or the employee of related corporation of such energy consumer, in accordance with conditions as the Commission deems fit.

(4) Any energy consumer who contravenes subregulation (1) commits an offence and shall, on conviction, be liable to a fine not exceeding ten thousand ringgit.

Chapter 2 – Energy management

Energy management system

8. The energy consumer shall develop an energy management system within one year from the date of the appointment of the registered energy manager under subregulation 4(1) or 6(1).

Energy efficiency and conservation report

9. The energy consumer shall submit the energy efficiency and conservation report prepared under subsection 7(1) of the Act as follows:

- (a) for the first energy efficiency and conservation report, the energy efficiency and conservation report shall be submitted to the Commission by the electronic means within thirty days after the expiry of one year from the date of the appointment of the registered energy manager under subregulation 4(1) or 6(1); and
- (b) for the subsequent energy efficiency and conservation report, that energy efficiency and conservation report shall be submitted to the Commission by the electronic means annually, within thirty days after the expiry of one year from the anniversary date of the appointment of the registered energy manager under subregulation 4(1) or 6(1).

Energy audit report

10. (1) The energy consumer shall submit an energy audit report prepared under section 9 of the Act to the Commission by electronic means—

- (a) within one year from the date the written notice under subsection 3(3) of the Act issued to the energy consumer; and
- (b) on the fifth year for every five years from the date of submission of the last energy audit report to the Commission; or
- (c) in a case where a written notice of exemption issued under subsection 9(4) of the Act, in accordance with the period specified in the written notice of exemption issued by the Commission.

(2) The energy consumer may apply to the Commission to be exempted from submitting subsequent energy audit report within the first three months on the fifth year for every five years from the date of last submission of the energy audit report.

PART III**DUTIES OF PERSON IN CHARGE OF A BUILDING****Energy intensity label**

11. (1) A person in charge of a building shall apply for an energy intensity label in respect of the building to the Commission by electronic means for each year.

(2) For the first application of the energy intensity label to the Commission, the person in charge of a building shall make the application within thirty days after the expiry of the one year period from the date of the written notice under subsection 3(4) of the Act issued to him.

(3) For the application of energy intensity label for the following year, the person in charge of a building shall apply for such label within thirty days before the expired date as specified in the existing energy intensity label.

(4) Any person in charge of a building who fails to apply for the energy intensity label within the period referred to in subregulations (2) and (3) shall pay a late fee as specified in the Schedule.

(5) The application referred to in subregulations (2) and (3) shall be submitted to the Commission together with the payment of fee as specified in the Schedule and any information, details or document as may be determined by the Commission.

(6) The energy intensity label issued under paragraph 10(4)(a) of the Act shall be valid for a period of not exceeding one year and expired on the date as specified in such label.

Energy efficiency rating

12. (1) A person in charge of a building issued with the energy intensity label under paragraph 10(4)(a) of the Act, shall ensure that the energy intensity performance of such building shall not be lower than the energy efficiency rating of two stars.

(2) A person in charge of a building shall comply with the energy efficiency rating referred to in subregulation (1) annually commencing on the fifth year from the year of which the first energy intensity label was issued by the Commission.

PART IV

ENERGY-USING PRODUCT

Minimum energy performance standards

13. (1) The energy-using product shall meet the minimum energy performance standard of not lower than the two star rating.

(2) For the purposes of subregulation (1), "rating" means energy efficiency rating of an energy-using product indicated through star rating as specified in the guidelines issued by the Commission.

PART V
REGISTRATION OF ENERGY MANAGER AND ENERGY AUDITOR

Energy manager

14. (1) An energy manager may apply to the Commission to be a first type registered energy manager, if such energy manager—

- (a) holds a degree in science, engineering, technology or architecture from a college, institution or university recognized by the Commission and has at least two years of working experience;
- (b) holds a diploma in science, engineering, technology or architecture from a college, institution or university recognized by the Commission and has at least ten years of working experience;
- (c) is registered under the Registration of Engineers Act 1967 [Act 138] as—
 - (i) a Graduate Engineer or Engineering Technologist with at least two years of working experience;
 - (ii) an Inspector of Works with at least ten years of working experience; or
 - (iii) a Professional Engineer;
- (d) is registered under the Technologists and Technicians Act 2015 [Act 768] as —
 - (i) a Graduate Technologist with at least two years of working experience;
 - (ii) a Qualified Technician who holds at least a diploma with at least ten years of working experience; or

(iii) a Professional Technologist; or

(e) is registered under the Architects Act 1967 [*Act 117*] as—

(i) a Graduate Architects with at least two years of working experience;

(ii) an Inspector of Works with at least ten years of working experience; or

(iii) a Professional Architect; and

(f) demonstrates knowledge of the requirements of the Act and Regulations that satisfies the Commission.

(2) A first type registered energy manager in subregulation (1) may apply to the Commission to be a second type registered energy manager, if such first type registered energy manager—

(a) has been a first type registered energy manager for a period of not less than one year and holds a valid practicing certificate; and

(b) demonstrates knowledge of the requirements of the Act and Regulations that satisfies the Commission.

(3) Any person who holds a valid certificate of registration as an electrical energy manager issued under the Electricity Supply Act 1990 [*Act 447*] may apply to the Commission to be a second type registered energy manager until the date of the expiry of his certificate of registration under the Electricity Supply Act 1990 by sitting any assessment as may be determined by the Commission.

Energy auditor

15. An energy auditor may apply to the Commission to be a registered energy auditor if such energy auditor—

- (a) holds a degree in science, engineering, technology or architecture from a college, institution or university recognized by the Commission and has at least two years of working experience;
- (b) holds a diploma in science, engineering, technology or architecture from a college, institution or university recognized by the Commission and is a registered energy manager who fulfils the requirements of subregulation 14(2) or (3);
- (c) is registered under the Registration of Engineers Act 1967 as—
 - (i) a Graduate Engineer or Engineering Technologist with at least two years of working experience;
 - (ii) an Inspector of Works and is a registered energy manager who fulfils the requirements of subregulation 14(2) or (3); or
 - (iii) a Professional Engineer;
- (d) is registered under the Technologists and Technicians Act 2015 as —
 - (i) a Graduate Technologist with at least two years of working experience;
 - (ii) a Qualified Technician who holds at least a diploma and is a registered energy manager who fulfils the requirements of subregulation 14(2) or (3); or

- (iii) a Professional Technologist; or
- (e) is registered under the Architects Act 1967 as—
 - (i) a Graduate Architects with at least two years of working experience;
 - (ii) an Inspector of Works and is a registered energy manager who fulfils the requirements of subregulation 14(2) or (3); or
 - (iii) a Professional Architect; and
- (f) having experiences in at least two energy audits approved by the Commission; and
- (g) demonstrates knowledge of the requirements of the Act and Regulations that satisfies the Commission.

PART VI
GENERAL

Fees

16. The fees payable in respect of the matters specified in column (2) of the Schedule shall be as specified in column (3) of the Schedule.

SCHEDULE
[Regulation 16]

FEES

(1) No.	(2) Matter	(3) Fees per year (RM)
1.	Application for energy intensity label under subsection 10(3) of the Act	100.00
2.	Late fee for the application of energy intensity label under subsection 10(2) of the Act	100.00
3.	Application for registration of manufacturer or importer under subsection 19(2) of the Act	30.00
4.	Application for certificate of energy efficiency under subsection 21(2) of the Act	30.00
5.	Issuance of certificate of energy efficiency under subsection 21(4) of the Act	220.00
6.	Application to renew the certificate of energy efficiency under subsection 22(2) of the Act	30.00
7.	Renewal of certificate of energy efficiency under paragraph 22(3)(a) of the Act	220.00
8.	Application for registration of energy manager or energy auditor under subsection 27(2) of the Act	30.00
9.	Issuance of certificate of registration of energy manager or energy auditor under paragraph 27(3)(a) of the Act	100.00
10.	Application for practicing certificate of registered energy manager or energy auditor under subsection 28(2) of the Act	30.00

(1) No.	(2) Matter	(3) Fees per year (RM)
11.	Issuance of practicing certificate of registered energy manager or energy auditor under paragraph 28(3)(a) of the Act	100.00
12.	Application to renew the practising certificate of registration of energy manager or energy auditor under subsection 29(3) of the Act	30.00
13.	Renewal of practising certificate of registered energy manager or energy auditor under paragraph 29(5)(a) of the Act	100.00
14.	Late fee for the renewal of practising certificate of registered manager or energy auditor under subsection 29(2) of the Act	100.00
15.	Application for registration of training institution conducting a training course to be a registered energy manager under subsection 33(2) of the Act	200.00
16.	Issuance of certificate of registration of training institution conducting a training course to be a registered energy manager under paragraph 33(3)(a) of the Act	2,000.00
17.	Application for practicing certificate of registered training institution conducting a training course to be a registered energy manager under subsection 34(2) of the Act	200.00
18.	Issuance of practicing certificate of registered training institution conducting a training course to be a registered energy manager under paragraph 34(3)(a) of the Act	2,000.00
19.	Application to renew the practicing certificate of registered training institution conducting a training course to be a registered energy manager under subsection 35(3) of the Act	200.00

(1) No.	(2) Matter	(3) Fees per year (RM)
20.	Renewal of practicing certificate of registered training institution conducting a training course to be a registered energy manager under paragraph 35(4)(a) of the Act	2,000.00
21.	Late fee for renewal of practicing certificate of registered training institution conducting a training course to be a registered energy manager under subsection 35(2) of the Act	2,000.00
22.	Application for registration of training institution carrying out a continuous development programme for a registered energy manager under subsection 33(2) of the Act	100.00
23.	Issuance of certificate of registration of training institution carrying out a continuous development programme for a registered energy manager under paragraph 33(3)(a) of the Act	750.00
24.	Application for practicing certificate of registered training institution carrying out a continuous development programme for a registered energy manager under subsection 34(2) of the Act	100.00
25.	Issuance of practicing certificate of registered training institution carrying out a continuous development programme for a registered energy manager under paragraph 34(3)(a) of the Act	750.00
26.	Application to renew the practicing certificate of registered training institution carrying out a continuous development programme for a registered energy manager under subsection 35(3) of the Act	100.00

(1) No.	(2) Matter	(3) Fees per year (RM)
27.	Renewal of practicing certificate of registered training institution carrying out a continuous development programme for a registered energy manager under paragraph 35(4)(a) of the Act	750.00
28.	Late fee for renewal of certificate of registered training institution carrying out a continuous development programme for a registered energy manager under subsection 35(2) of the Act	750.00

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